smoothly eased into other employment. Former intelligence officers who express their discontent publicly do not automatically deserve to be hounded. To be sure, some self-proclaimed whistleblowers have ended their careers with well-deserved disciplinary sanctions. Others seem to have gone slightly mad. But the literal-minded and sometimes vindictive-seeming approach of prosecutors and investigators stokes the mistaken impression that the intelligence agencies are out of control and persecute dissidents.

The oversight of the intelligence agencies needs to change. FISA court judges should be appointed by the whole Supreme Court, not just by the chief justice. The court's work is necessarily secret, so it must have the broadest possible political support. It also needs a public defender or privacy advocate, with a high security clearance, to challenge the agencies' contentions in individual cases, in the adversarial tradition of American justice. Senior officials must be seen to take responsibility for their mistakes. General Keith Alexander, the head of the NSA, should have resigned as soon as the scale of the breach became apparent. The organisation in which this happened—too big, too commercial, too secretive, too vulnerable—was his creation. If this is indeed, as officials plausibly maintain, the worst intelligence disaster in American history, someone must be seen to take personal responsibility. General Clapper too should resign, for having misled Congress, however inadvertently. The strongest argument in rebutting Snowden's claims is that the existing system already works and that its shortcomings are not so grave that they require huge breaches of secrecy to galvanise reform. That contention will be more widely accepted if individuals who break the rules then visibly take the consequences.

Finally, it is tempting to see intelligence failures in a tidy, narrow context: a failure of procedure here, a flawed personality there. But they usually reflect broader